

Contentious Chamber

Decision on the merits 55/2024 of April 9, 2024

File number: DOS-2022-05244

Subject: Complaint for failure to notify/insufficient notification of a personal data breach to the data subject

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke Hijmans, president, and Messrs. Dirk Van Der Kelen and Frank De Smet, members;
Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation, hereinafter "GDPR");

Considering the law of December 3, 2017, establishing the Data Protection Authority, hereinafter "LCA";

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

Mr. X, hereinafter "the complainant";

The defendant:

Y, represented by Ms. Anneleen Van de Meulebroucke and Ms. Laure Mortier, whose office is located at 1050 Brussels, Avenue Louise 90, hereinafter "the defendant".

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I.

Facts and procedure

1.

On the night of September 5 to 6, 2022, the defendant was the victim of a ransomware attack by a group of hackers (hereinafter: the cyberattack).

2.

On December 18, 2022, the complainant sent an email to the defendant with questions regarding the impact of the cyberattack on his personal data. The complainant claims to have received no information at that time, whether through the media or directly addressed to him (via email, SMS, mail, etc.), regarding the potentially significant impact on his privacy, in accordance with the provisions of Article 34 of the GDPR. The complainant wishes to know what suspicious actions he should be aware of or whom he can contact.

3.

On December 21, 2022, the complainant filed a complaint with the Data Protection Authority (hereinafter "DPA") against the defendant.

4.

On December 22, 2022, the defendant informed the complainant that, in particular, there was no indication that data relating to citizens had been stolen. In this regard, the defendant also referred to a page on its website providing further explanations about the cyberattack. The defendant emphasized that this page had been available on its website since December 21, 2022.

5.

On December 27, 2022, the complainant submitted a copy of the information about the cyberattack as it was available on the defendant's website to the Contentious Chamber to supplement his complaint.

6.

On August 4, 2023, the complaint was declared admissible by the Frontline Service based on Articles 58 and 60 of the LCA, and the complaint was forwarded to the Contentious Chamber pursuant to

Article 62, § 1 of the LCA.

7.

On September 18, 2023, the Contentious Chamber decided, under Article 95, § 1, 1° and Article 98 of the LCA, that the case could be examined on the merits.

8.

On September 18, 2023, the parties concerned were informed by registered mail of the provisions as set out in Article 95, § 2 and Article 98 of the LCA. They were also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions.

For the findings related to the subject of the complaint, the deadline for receiving the defendant's response conclusions was set for October 30, 2023, the deadline for the complainant's reply conclusions was set for November 20, 2023, and finally, the deadline for the defendant's reply conclusions was set for December 11, 2023.

9.

On September 28, 2023, the defendant requested a copy of the file (Art. 95, § 2, 3° of the LCA), which was transmitted to him on October 2, 2023.

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10.

On September 19, 2023, the complainant accepts all communications related to the case electronically.

11.

On October 12, 2023, the defendant agrees to receive all communications related to the case electronically and expresses his intention to exercise the right to be heard, in accordance with Article 98 of the LCA.

12.

On October 30, 2023, the Contentious Chamber receives the defendant's response submissions. Regarding the admissibility of the complaint and the procedure, the defendant primarily argues that the procedure is flawed due to an invalid initiating act and several other procedural points that would violate the rights of the defense. In a subsidiary manner, regarding admissibility, the defendant contends that the complainant's complaint is inadmissible due to lack of personal interest, lack of capacity to act on behalf of a collective interest, and the disappearance of the object of the complaint. Concerning the merits of the complaint, the defendant primarily argues that he has, in any case, complied with Article 34 of the GDPR. The defendant asserts that there was no obligation to inform the data subjects based on Article 34 of the GDPR, but that he did so nonetheless. In this context, it was not possible to inform the data subjects individually. In a subsidiary manner, the defendant argues that the complainant had indeed been informed and therefore provides no evidence of the alleged violation.

13.

On November 17, 2023, the Contentious Chamber receives the reply submissions from the complainant. The complainant states that he has been residing at [XXX] since 2020 and thus also at the time of the cyberattack, and that his company's office has been located at [XXX] for many years. The complainant emphasizes that the complaint was filed, as a good citizen, on behalf of all affected individuals. The complainant then argues that since the cyberattack, and prior to his complaint to the APD, he had not been informed in any way about the potential impact on his privacy, which is clearly evident from the documents prior to December 19, 2022, cited by the defendant. On the merits, the complainant argues that the defendant should have informed everyone/all affected individuals as soon as possible, instead of waiting to see what the actual/potential impact on the processing of personal data would be. Following forensic investigation and the advanced analysis it entails, it is possible to communicate a potential delineation of target groups, types of data, number of potentially affected individuals, etc. Regarding the content of the defendant's communication following the cyberattack, the complainant argues that it primarily concerned the cyberattack and the unavailability of services rather than the potential impact on the citizen's privacy.

14.

On December 11, 2023, the Contentious Chamber receives the rejoinder submissions from the defendant. In these summary submissions, the defendant reiterates his positions from the response

submissions.

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15.

On February 1, 2024, the parties are informed that the hearing will take place on March 20, 2024.

16.

On March 20, 2024, the parties are heard by the Contentious Chamber.

17.

On March 29, 2024, the minutes of the hearing are submitted to the parties.

18.

On March 29, 2024, the Contentious Chamber receives communication from the complainant that he has no comments regarding the minutes.

19.

On April 2, 2024, the Contentious Chamber receives communication from the defendant that he has two comments regarding the minutes of the hearing, which it decides to include in its deliberation.

II. Motivation

II.1. Admissibility of the complaint

20. The Contentious Chamber first responds to the defendant's arguments regarding the admissibility of the complaint.

21.

Regarding the admissibility of the complaint and the legality of the procedure, the defendant raises two main arguments. The first argument states that the procedure is flawed due to an invalid initiating act, and the second argument states that the decision of the Contentious Chamber does not demonstrate compliance with Article 4, § 3 of the LCA and the general principles of good administration. In a subsidiary manner, the defendant argues that the complaint is inadmissible due to lack of personal interest of the complainant, lack of capacity to act on behalf of a collective interest, and the disappearance of the object of the complaint.

II.1.1. Notification of the decision regarding admissibility, the decision that the file is ready, as well as the decision regarding the obligation of motivation and the principles of good administration

Defendant's viewpoint

22.

The defendant states that, as far as can be verified based on the data currently available to him, on August 4, 2023, the Frontline Service would have declared the complainant's complaint admissible and transmitted it to the Contentious Chamber. The defendant adds that he does not know if there is a decision from the Frontline Service. The email itself does not contain any motivation in this regard. The email also does not include any annex, such as the related decision from the Frontline Service, where motivation could be found. Nevertheless, Article 4, § 3 of the LCA provides as follows: "Any legally binding decision of the Data Protection Authority is dated, signed, and motivated, and refers to the remedies that may be filed against the decision." According to the defendant, the decision of the Frontline Service

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constitutes such a legal decision. As an organ of an administrative authority, the First Line Service is also bound by general principles of good administration, including the principle of motivation under which every decision must be justified based on relevant and fair factual and legal grounds. In case of non-compliance with the principle of motivation, as in this case, the decision is null, concludes the defendant.

23.

Regarding the second plea, namely: "the decision of the Contentious Chamber does not demonstrate compliance with Article 4, § 3 of the LCA and the general principles of good administration," the defendant claims that he was not informed of any decision from the Contentious Chamber. The defendant asserts that the Contentious Chamber did not fulfill the obligation of motivation because the reasons on which it assessed whether the case could be examined on the merits (Article 95, § 1, 1° of the LCA) were not communicated to him; he therefore does not understand why the Contentious

Chamber did not decide to resort to the other options provided for in Article 95, § 1, 2° - 8° of the LCA.
24.

In an email dated August 9, 2023, the Contentious Chamber further informed the complainant that his complaint was being examined, which allowed the complainant to deduce as of August 9, 2023, that the First Line Service had declared the complainant's complaint admissible. The defendant did not have this information. This constitutes a violation of the principle of equality of arms, which is part of the broader principle of the right to a fair trial under Article 6 of the ECHR, claims the defendant. This also amounts to a violation of several other general principles of good administration, such as the principle of impartiality, the principle of reasonableness, the precautionary principle, and the principle of fair play.

Assessment by the Contentious Chamber

25.

The Contentious Chamber explains that the decision of the First Line Service regarding the admissibility of the complaint is included in an email sent to the Contentious Chamber, and that the email in question is fully part of the administrative file. Following this email, the Contentious Chamber initiated the examination procedure on the merits. The Contentious Chamber uses a single letter to inform the parties (both the complainant and the defendant) of the admissibility of the complaint in accordance with Article 61 of the LCA - this provision strictly requires that only the complainant be informed of the admissibility of his complaint - as well as the initiation of the procedure on the merits, including all information in accordance with Article 98 of the LCA in conjunction with Article 95, § 2 of the LCA. In this regard, the Contentious Chamber considers that the email of August 9, 2023, to the complainant informing him that the case was still under examination did not cause any harm to the defendant.

26.

Regarding the decision on admissibility as well as the decision that the case can be examined on the merits, the Contentious Chamber therefore refers to the same

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email dated September 18, 2023, with the attached letter, in which the parties are explicitly informed that the complaint was declared admissible on August 4, 2023, by the First Line Service and that the Contentious Chamber has decided that the case can be addressed on the merits. This means that the letter with the schedule of conclusions serves as notification to the parties, both of the decision regarding admissibility and of the decision that the case can be addressed on the merits, so that both Article 61 of the LCA and Article 98 of the LCA in conjunction with Article 95, § 2 of the LCA have been respected.

27.

To the extent that the defendant objects that the decision of the First Line Service regarding the admissibility of the complaint does not mention the grounds on which this decision is based, the Market Court has already stated in its judgment of December 1, 2021, the following:

“According to Article 60 of the LCA, the First Line Service examines whether the complaint or request is admissible. A complaint is admissible when it: is written in one of the national languages; contains a statement of facts and the necessary indications to identify the processing to which it pertains and falls under the jurisdiction of the Data Protection Authority.

The decision regarding the admissibility of the complaint or request is communicated to the complainant or applicant (Article 61 of the LCA).

Admissible complaints are forwarded by the First Line Service to the Contentious Chamber. (Article 62, § 1 of the LCA).

According to Article 92 of the LCA, for the processing of a complaint, the Contentious Chamber may be seized by the First Line Service, in accordance with Article 62, § 1 of the LCA. The LCA does not provide for any other formalities.

These formal requirements are respected here. The argument contesting the regularity of the referral to the Contentious Chamber is unfounded.”¹ [N.B.: Free translation made by the Translation Service of the Data Protection Authority, in the absence of an official translation]

28.

Furthermore, the Market Court stated in its judgment of June 8, 2022, the following:

“The Court further emphasizes that under Article 108 of the LCA, only the decisions of the Contentious Chamber of the DPA are subject to appeal before the Market Court. However, the LCA does not provide that the Contentious Chamber, once seized of a complaint, may decide on the admissibility of complaints addressed to the DPA.”²

1 Judgment 2021/AR/1044 of the Brussels Court of Appeal, Market Court section, December 1, 2021, p. 24. (available only in Dutch)

2 Judgment 2022/AR/42 of the Brussels Court of Appeal, Market Court section, June 8, 2022, p. 22.

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and

“Once seized, the Contentious Chamber may, for its part, take one of the decisions listed in Articles 94, 95, and 100 of the LCA.

It is clear from reading these articles that the legislator did not provide for the Contentious Chamber the possibility to decide on the admissibility of the complaint it has been seized of: [...]”³

29.

It is clear from the above that the Contentious Chamber cannot verify the content of the admissibility decision of the First Line Service.

30. Furthermore, at this stage of the dispute, the defendant is not a party to the admissibility decision.

It is indeed not the role of the First Line Service to make findings regarding the data controller or the processor that is the subject of the complaint. The admissibility decision is addressed solely to the complainant. If a complaint is declared admissible, the complainant is notified as soon as the Contentious Chamber has begun processing the complaint. The defendant is involved in the procedure only from that moment.

31.

To the extent that the defendant objects that the decision of the Contentious Chamber stating that the case can be addressed on the merits does not mention the grounds on which this decision is based, the Market Court has already stated in its judgment of December 1, 2021, the following:

“An administrative finding that the case can be processed does not prejudice the person concerned as long as that person can defend against the complaint.”⁴ [N.B.: Free translation made by the Translation Service of the Data Protection Authority, in the absence of an official translation]

32.

The letter containing the schedule of conclusions includes all the information prescribed by Article 98 of the LCA and is specifically aimed at justifying the decision of the Contentious Chamber, based on the defenses raised by the parties, in respect of the rights of the defense.

33. Furthermore, there is in no case an obligation for negative reasoning, meaning that the Contentious Chamber is not required to justify why it did not resort to the other options provided for in Article 95, § 1 of the LCA.⁵

3 Ibid., p. 23.

4 Judgment 2021/AR/1044 of the Brussels Court of Appeal, Market Court section, December 1, 2021, p. 24. (available only in Dutch)

5 See also in this sense the decision on the merits 133/2021 of December 2, 2021, of the Contentious Chamber, point 33.

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II.1.2. Presumed absence of a personal interest, in the absence of the possibility to act on behalf of a collective interest and following the disappearance of the subject of the complaint

34. In the alternative, the defendant argues that the complaint does not indicate that there is a sufficient personal interest of the complainant in this case. According to the defendant, the complainant could have learned through various channels, namely the defendant's website to which the complainant himself refers, as well as through the email in response to the question posed by the complainant to the defendant, information related to the cyberattack and its impact on the personal data of citizens. The defendant contends that the complainant has not plausibly demonstrated that he

was unaware of the impact of the cyberattack. The defendant argues that on the one hand, the complainant has himself obtained information regarding the cyberattack via email and through the website, and on the other hand, he has been able to follow the communication channel on the defendant's website very precisely and regularly. According to the defendant, in the absence of a personal interest and any possibility to act based on a public interest, the complaint must be declared inadmissible.

35. The Contentious Chamber recalls that Article 58 of the LCA states the following: "Any person may file a complaint or a written request, dated and signed, with the Data Protection Authority." In accordance with Article 60, paragraph 2 of the LCA, a complaint is admissible when it:

- is written in one of the national languages;
- contains a statement of facts and the necessary information to identify the processing to which it relates;
- falls within the competence of the Data Protection Authority.

36. The Contentious Chamber has already expressed the following considerations on this issue in a previous decision:

"Although the GDPR considers the 'complaint' from the perspective of the data subject, imposing obligations on supervisory authorities when a person files a complaint (see Articles 57, 1.f) and 77 of the GDPR), the GDPR does not prevent national law from allowing persons other than the data subjects or persons mandated by them, as defined in Article 220 of the law of July 30, 2018, on the protection of natural persons with regard to the processing of personal data, to file a complaint with the national supervisory authority. The possibility of such a referral corresponds to the missions assigned to supervisory authorities by the GDPR. In this regard, and generally speaking, each supervisory authority: ensures compliance with the application of the GDPR and its respect (Article 57.1.a) of the GDPR) and carries out any other mission related to the protection of personal data (Article 57.1.v) of the GDPR)."

37. In summary, the LCA does not exclude that a person other than the data subject or the person mandated by the data subject, as defined in Article 220 of the law of July 30, 2018, on the protection of natural persons with regard to the processing of personal data, may file a complaint with the DPA.

38. More specifically, the Contentious Chamber believes that Article 58 of the LCA gives any person the possibility to file a complaint, provided that they have a sufficient interest. In this regard, the Contentious Chamber must first note that it follows from the defendant's conclusions that at the time of their drafting, nothing indicates that personal data of citizens would have been stolen as a result of the cyberattack. Therefore, it is not clear whether the personal data of the complainant were affected by the cyberattack.

39. Next, the Contentious Chamber observes that the complainant sent an email on December 27, 2022, supplementing his complaint with information regarding the cyberattack as he had found it that day on the defendant's website. The complainant then confirmed by email to the defendant on February 15, 2023, that information was available on the website but that the complainant had not yet received any letter or other communication that could reach the entire population "even those who cannot visit or access any website." [N.B.: Free translation provided by the Translation Service of the Data Protection Authority, in the absence of an official translation]

40. When the defendant also raises this point in his conclusions in response, the complainant argues in his reply that he filed the complaint for all affected persons "[...] as a good citizen. The DPA and its services are themselves competent to investigate issues that affect a large part of society: the public interest therefore. This action on my part was deliberate." [N.B.: Free translation provided by the Translation Service of the Data Protection Authority, in the absence of an official translation]

41. In light of the above, the Contentious Chamber finds that the complainant has not demonstrated, either in his complaint, in his conclusions in response, or during the hearing, how he would possess the required interest.

6 See among others decision 106/2022 of June 28, 2022, of the Contentious Chamber; Decision 117/2021 of October 22, 2021, of the Contentious Chamber and decision 80/2020 of December 17, 2020, of the Contentious Chamber. See also decision 30/2020 of the Contentious Chamber.

7 See also in this sense ruling 2022/AR/42 of the Market Court, June 8, 2022.

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42.

Consequently, the Disciplinary Chamber notes that the complainant refers in this case to a public interest consisting of protecting the data protection rights of all individuals concerned in the context of the cyberattack. The complainant's position that he filed the complaint on behalf of all affected individuals, as a good citizen, cannot be considered convincing. The mere pursuit of a public interest is not sufficient to demonstrate a public interest. The complainant has therefore not plausibly established that he had any personal interest.

43.

After reviewing the complaint in the context of the merits procedure, it has thus been found that the complainant did not demonstrate that he had a sufficiently concrete interest to file a complaint.

44.

Although the lack of interest on the part of the complainant is sufficient to proceed with a technical dismissal of this complaint, the Disciplinary Chamber emphasizes, for the sake of completeness, that the defendant was the victim of a significant cyberattack following which - and there is no evidence to the contrary - he immediately conducted the necessary analyses, which he is currently continuing, in order to contain the attack and assess its scope and potential consequences. In these difficult circumstances, however, the defendant issued a press release regarding the attack within hours of discovering the cyberattack, in order to inform citizens. A few days after the attack, the defendant published a page on his website dedicated to the cyberattack, which included, among other things, information on the measures that citizens could take to better protect any potentially affected personal data, given the uncertainty regarding whether any personal or administrative data had been stolen, and which ones exactly. Subsequently, additional information was also communicated by the defendant as soon as he was able to obtain more information. Information about the cyberattack was communicated through a dedicated website, links on all the city's websites to the specific website concerning the cyberattack, and social media. Therefore, the defendant cannot be criticized for not having reacted quickly, as evidenced by the communication regarding the cyberattack as soon as this information became available. Sending individual letters to each potential victim of the cyberattack, as indicated by the complainant, would have been neither proportionate nor effective, assuming it was even possible to identify the victims. The defendant also argues that the complaint has become moot, given that he informed citizens of the cyberattack on December 22, 2022, thus within days of the filing of the complaint. At that time, the defendant was also unaware of the filing of a complaint regarding the aforementioned facts and the alleged violation of Article 34 of the GDPR by the complainant. In light of the above, the Disciplinary Chamber therefore finds that the defendant did not adopt a wait-and-see attitude and that the measures he took led to the disappearance of the subject matter of the complaint.

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(signed) Hielke HIJMANS

President of the Disciplinary Chamber